

26AVCP00018 26AVCP00018

County: los-angeles

Division: Civil Law and Motion

Department: 534

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Case Number: 26AVCP00018 Hearing Date: July 16, 2026 Dept: 534

Background

On January 16, 2026, Lourie Walker filed a petition for administrative mandamus naming the California Department of Social Services as the respondent. The petition seeks to set aside a decision that rescinded Petitioner's Resource Family Approval and revoked her Family Child Care Home license.

Motion

On June 11, 2026, Respondent filed the instant motion seeking to transfer the action to a writs and receivers department in the Central District of the Superior Court of Los Angeles County.

The motion is unopposed. (Code Civ. Proc. § 1005.)

Motion
to Transfer Between Districts

Standard

Superior

Court of Los Angeles County Local Rules, rule 2.3(b)(2) authorizes Department 1 to transfer civil cases from one judicial district to another via a noticed motion on three enumerated grounds: (1) when the case was filed in an improper district; (2) for the convenience of witnesses; or (3) to promote the ends of justice. (SCLAC Local Rule 2.3(b)(2).) A transfer under the

Local Rules is discretionary.

Respondent

Demonstrated the Case was Filed in an Incorrect District

Respondent

seeks to transfer this action from the Michael

Antonovich Antelope Valley Courthouse in the North District to the Central

District. Respondent contends the case was not filed in the correct district

based upon the applicable Local Rules.

In Steps 1 through 3 of the civil case cover

sheet addendum, Petitioner identified this case as one for a “Writ-Administrative

Mandamus.” In Step 4 where petitioner is asked to identify the Statement

of Reason and Address for the filing location, Petitioner checked both Reason

2, which corresponds to permissive filing in the Central District, and Reason

8, which corresponds to the “[l]ocation wherein defendant/respondent functions wholly.”

Pursuant

to the mandatory filing rules in Los Angeles Rules of Court, rule 2.3(a)(1)(A):

“[e]very proceeding seeking a writ of prohibition or mandate (except as provided in subsection (B) below) must be filed in the Central District.”

Subsection (B) provides that petition for mandate or prohibition may alternatively be filed “where the defendant functions wholly therein.”

The California

Department of Social Services, as a statewide entity, does not function wholly

in the North District. (See e.g. Welf. & Ins. Code § 10600.)

Respondent

has demonstrated the case was filed in an incorrect district and the motion is

GRANTED. This action is properly filed in the Central District and assigned to

a writs and receivers department.

Conclusion

Respondent

California Department of Social Services’ Motion to Transfer is GRANTED. The action is ordered reassigned to a writs and receivers department in the Stanley Mosk Courthouse.

Notice of case reassignment shall issue shortly.

Counsel for moving party to give notice.